

Palau International Ship Registry



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MARINE CIRCULAR 164.1

To: ALL SHIPOWNERS, MANAGERS, OPERATORS AND MASTERS

Subject: 2010 AMENDED STCW CONVENTION

1. Purpose

- 1.1 This marine circular is with the purpose to inform you about the implementation of the Manila amendments and that by January 1st, 2017 the Manila Amendments must be in full compliance in all Palauan Ships.

2. References

- 2.1 The 2010-amended STCW Convention came into force on 1 January 2012. However, there is a five years transitional period, until 1 January 2017, to allow for a phased in implementation of the provisions. After January 2017, all seafarers are required to meet STCW 2010 standards. The three important dates to remember are:

1 January 2012

The STCW Convention comes into force for all countries party to the convention. From 1 January 2012 onwards, requirements for the new minimum rest hours and a record of hours of work must be complied with. For a period of five years, until 1 February 2017, on a national basis the different revised regulations contained in the 2010-amended convention will be phased in. During this five-year transitional period, a party may continue to issue certificates of competency in accordance with its previous practices, however from 1 July 2013 new seafarers-training and competence should comply with the 2010-amended STCW Convention.

1 January 2014

After 1 January 2014 seafarers will have to be trained in security in compliance with the new provisions.

1 January 2017

The implementation period ends. From February 2017 onwards all seafarers on active service must comply with all the 2010-amended STCW requirements and be in possession of a valid STCW certificate covering the functions performed on-board. Administrations will also issue and recognize and endorse certificates in accordance with the STCW provisions prior to 2010 for those commencing training prior to 1 July 2013.



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3. Implementation of the Manila amendments

3.1 In order to give a full and complete effect to the STCW 2010 Amendments (Manila Amendments), Palau Administration advises the following:

3.3.1 Existing Certificates of Competencies (STCW II/2, II/3, II/1, III/2, III/3, III/1, VII/2 and IV/2) and Certificate of Proficiency (STCW V/1) which were issued/revalidated by Parties in accordance with STCW 78 as amended in 95 will continue to be valid to 31st December 2016 and may be endorsed by this Administration in accordance with Regulation I/10.

3.3.2 Certificates of Competencies (STCW II/2, II/3, II/1, III/2, III/3, III/1, III/6, VII/2 and IV/2) and Certificates of Proficiencies (STCW V/1-1 and V/1-2) titled as issued in accordance with STCW 78 as amended, and whose validity is beyond 1st January 2017 will be considered as issued in accordance with STCW 2010 Amendments and should be endorsed in accordance with Regulation I/10.

4. Medical Standards

4.1 Medical requirements for seafarers have been revised in the amendments. Medical Certificates to seafarers should be issued in accordance with provisions of Section A- I/9 and Guidelines in the Code and should be valid for two (2) years, or one (1) year if the seafarer is under 18-year-old.

Standards of medical fitness for seafarers and procedures for the issue of a medical certificate should be in accordance with the provisions of Regulation I/9 of the STCW Convention and of Section A-I/9 of the STCW Code. These standards should also adhere to the minimum in-service eyesight standard set out in table A-I/9 and criteria for physical and medical fitness set out in paragraph 2 and take into account the guidance in Section B-I/9. The form for the medical certificate should be in accordance with the latest IMO/ILO/WHO requirements. Each candidate for certification should:

- 4.1.1 not be less than 16 years of age;
- 4.1.2 provide satisfactory proof of his/her identity; and
- 4.1.3 meet the applicable medical fitness standards established in accordance with the latest IMO/ILO/WHO requirements.

4.2 Medical certificates should remain valid for a maximum period of two (2) years unless the seafarer is under 18-year-old in which case the maximum period of validity should be one (1) year.

If the period of validity of a medical certificate expires in the course of a voyage, then the medical certificate will continue to be in force until the next port of call



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where a recognized medical practitioner is available, provided that the period does not exceed three (3) months.

In urgent cases it will be permitted for a seafarer to work without a valid medical certificate until the next port of call where a recognized medical practitioner is available, provided that:

- 4.2.1 the period of such permission does not exceed three (3) months; and
- 4.2.2 the seafarer is in possession of a recent expired Medical Certificate.

This Administration recognizes medical practitioners approved by competent authorities of States, which are parties of STCW. The Owner and Seafarer should ensure that a medical practitioner responsible to assess the seafarers' medical fitness and to issue a medical fitness report is recognized by the State, which is a party of STCW.

Medical certificates issued under the 1995 STCW amendments should not have validity beyond 31st December 2016.

5. Watchkeeping Arrangements

- 5.1 Pursuant to STCW 2010 Amendments, and more particularly to Chapter VIII of the Convention and Code which enters into force as from 1st January 2012, Palau Administration informs the Companies, Masters, Officers and all watch keeping personnel that the requirements, principles and guidance set out in the STCW Code, Section A-VIII/1 should be observed in order to ensure that a safe continuous watch or watches appropriate to the prevailing circumstances and conditions are maintained on all seagoing ships at all times.
- 5.2 Masters should ensure that watchkeeping arrangements are adequate for maintaining a safe watch or watches, taking into account the prevailing circumstances and the following conditions:
 - 5.2.1 officers in charge of the navigational watch are responsible for navigating the ship safely at all times during their periods of duty, when they are physically present on the navigating bridge or in a directly associated location such as the chartroom or bridge control room;
 - 5.2.2 radio operators are responsible for maintaining a continuous radio watch on appropriate frequencies during their periods of duty; officers in charge of an engineering watch, as defined in the STCW Code, under the direction of the chief engineer officer, should be immediately available and on call to attend the machinery spaces and, when required, should be physically present in the machinery space during their periods of responsibility;



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5.3 An appropriate and effective watch or watches are maintained at all times for safety purposes, while the ship is at anchor or moored and, if the ship is carrying hazardous cargo, the organization of the watch or watches takes full account of the nature, quantity, packing and stowage of the hazardous cargo and of any special conditions prevailing on board, afloat or ashore; and as applicable,

5.4 An appropriate and effective watch or watches are maintained for security purposes.

6. Rest Periods

6.1 Palau Administration advise that watch systems should be arranged so that the efficiency of all watchkeeping personnel is not impaired by fatigue. Duties should be organized so that the first watch at the beginning of a voyage and subsequent relieving watches are sufficiently rested and fit for duty.

Danger posed by fatigue of seafarers should be taken into account. Masters, officers and ratings on watchkeeping duties, which involve designated safety, prevention of pollution and security duties should have the following minimum rest period:

6.1.1 a minimum of ten (10) hours of rest in any 24 hours period;

6.1.2 77 hours in a seven (7) day period.

6.2 Hours of rest should not be divided into more than two periods, one of which should at least be of six (6) hours in length, and the intervals between consecutive periods of rest should not exceed fourteen (14) hours.

6.3 The requirements for rest periods laid down in items (6.1.1) and (6.1.2) need not be maintained in case of an emergency or in other overriding operational conditions.

6.4 Accordingly, the Master may suspend the schedule of hours of rest and require a seafarer to perform any hours of work necessary until the normal situation has been restored. As soon as practicable after the normal situation has been restored, the Master should ensure that any seafarers who have performed work in a scheduled rest period are provided with an adequate period of rest.

6.5 Musters, firefighting and lifeboat drills, and drills prescribed by international instruments, should be conducted in a manner that minimizes the disturbance of rest periods and does not induce fatigue.



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- 6.6 When a seafarer is on call, such as when a machinery space is unattended, the seafarer shall have an adequate compensatory rest period if the normal period of rest is disturbed by callouts to work.
- 6.7 This Administration allows exceptions from the required hours of rest in paragraphs 5.2.2 and 5.3 above provided that the rest period is not less than 70 hours in any seven (7) day period.
- 6.8 Exceptions from the weekly rest period provided for in paragraph 5.2.2 should not be allowed for more than two consecutive weeks. Intervals between two periods of exceptions on board should not exceed twice the duration of the exception.
- 6.9 Hours of rest provided for in paragraph 4.1 may not be divided into more than three (3) periods, one of which should at least be of six (6) hours and neither of the other two (2) periods should be less than one hour. Intervals between consecutive periods of rest should not exceed fourteen (14) hours. Exceptions should not extend beyond two 24-hour periods in any seven (7) day period.
- 6.10 Watch schedules should be posted where they are easily accessible. The schedules should be established in a standardized format in the ship's working language or languages and in English.
- 6.11 The seafarers' records of daily hours of rest should be maintained in a standardized format, in the ship's working language or languages and in English to allow monitoring and verification of compliance with the provisions of this section to Port State Control Officers and Flag State Inspectors.
- 6.12 The seafarers should receive their copy of the records. This copy should be endorsed by the Master or by a person authorized by the Master and by the seafarers.
- 6.13 Flag State Inspectors and ISM Auditors should verify the compliance with the rest period during the Annual Flag State Inspections and ISM Audits. Hours of rest are also subject to Port State Control. Non-compliance may result in penalties to the Company and Master by this Administration.
7. Prevention of drug and alcohol abuse
- 7.1 Drug and alcohol abuse directly affect the fitness and ability of a seafarer to perform watchkeeping duties or duties that involve safety, prevention of pollution and security duties.



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- 7.2 Seafarers found to be under the influence of drugs or alcohol should not be permitted to perform watchkeeping duties or duties that involve safety, prevention of pollution and security duties, until they are no longer impaired in their ability to perform these duties
- 7.3 For the purpose of preventing alcohol abuse, a limit of 0.05% blood alcohol level (BAC) or 0.25 mg/l alcohol in the breath or a quantity of alcohol leading to such alcohol concentration for Masters, Officers and other seafarers while performing safety, security and marine environmental duties should be strictly followed.
- 7.4 Flag State Inspectors and ISM Auditors should randomly verify the blood alcohol level during the Annual Flag State Inspections and ISM Audits. It may also be subject to Port State Control Inspection. Non-compliance may result in penalties to the Company and Master by this Administration.

8. Companies' Responsibilities

Companies' responsibilities have been enhanced to include the following and they must ensure that:

- 8.1 seafarers assigned to its ships have received refresher and updating training as required by the STCW Convention;
- 8.2 ship's crew are sufficient to also perform security related duties; and
- 8.3 there is effective oral communication at all times on board its ships, in accordance with the provisions of SOLAS Chapter V regulation 14.

****This Marine Circular supersedes the Marine Circular 16-027****

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